

19SMCV00057 19SMCV00057

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The court has before it defendant's motion to tax costs and a status conference on the fee motion.

Turning first to the motion to tax costs, it is GRANTED IN PART.

In a FEHA case, the court may grant costs to a prevailing plaintiff pursuant to Government Code section 12965(c). That is broader than section 1033.5, although it is not unbounded. To that end, the

State's motion is actually quite narrow.

Defendant only challenges the travel costs for more than one attorney to attend the oral argument. (Plaintiff discusses the mediation costs, but in the reply, defendant disclaims any challenge to those costs. Nor does defendant challenge the ability to recover reasonable travel costs for the attorney who argued the appeals.) The court notes

that (of course) only one attorney argued the case before the Court of Appeal, yet three were present. The court does not believe having three lawyers at an oral argument is reasonable and necessary. The only question is whether

the court should allow the travel costs for the second lawyer. The court is inclined to not so allow. The court agrees that the record in this case

was significant, and that having a second lawyer there could be helpful. But it was not necessary. Lead appellate counsel was retained for the

appeal and spent considerable time drafting the brief(s) and reviewing the record. While the record was voluminous,

this is not a case where the attorney arguing the case gave a quick read of the brief and signed. Lead counsel here did

the work. Counsel spent the time to

craft the brief and become familiar with the record, and is seeking compensation for that time. Given the

amount of time being sought for appellate counsel, the court cannot say that it was necessary to have more than one attorney attend argument. The flip side of that is that the court looks with a favorable eye toward time incurred in the fee motion spent by lead counsel to master the record. Further, the declarations justifying Musell's and Willits's physical presence at oral argument is thin. The contention is that remote appearances were not allowed, and that additional attorneys had to be present in court because of the serious nature of the argument and the ability to give real-time assistance to lead counsel during the argument. The court has had some experience in the appellate court. The court will not say that Musell's presence was not helpful, but the court does not believe it was necessary in light of lead counsel's experience and the time lead counsel had put into the case preparing for the argument. Willits's presence is explained as necessary to correct mis-statements of the record by the defense during argument on the ground that Willits was the managing partner of Musell's firm and very knowledgeable about the record. For the same reason, though, the court does not find that Willits's presence was necessary. Therefore, the motion to tax costs is GRANTED to that extent.

The court disagrees with the state, however, that the amount provided to state lawyers is the benchmark here. Counsel presumably flew on a regular flight (not premium class), but counsel was not required to find the cheapest possible flight. Counsel presumably stayed at a reasonable hotel near the courthouse. There is no evidence that counsel stayed in a suite or at some resort hotel that is unreasonably priced. Nor is there evidence that counsel dined on lobster. The state has not pointed to specific items that are unreasonably high; rather, the state's argument is that counsel should be limited to the same reimbursement as state employees. Putting to one side whether non-government employees can get government rates, the court does not find that the state's reimbursement rate is per se the reasonable reimbursement rate. The court's review of the costs claimed does not suggest that they are unreasonably high or inflated. Accordingly, with regard to the amount as to lead appellate counsel's actual costs, the motion is DENIED.

In short, the motion is GRANTED IN PART AND DENIED IN PART. The court notes that defendant seems to be asking for a statement of decision on this motion. No such statement is required. (Code Civ. Proc. Sec. 632; State of California v. Westover Co. (1956) 140 Cal.App.2d 447; County of Kern v. Ginn (1983) 146 Cal.App.3d 1107.)

The court will ask about the status of the fee briefing and set a hearing date. The court believes it to be briefed up, but the court did not see the actual fee hearing as set for today. The court has read the briefs, and, while the court is not prepared to rule, the court can give some general thoughts if it would be helpful.

(By helpful, the court means that it might lead the parties to reach a resolution of the issue.)